

Welfare & Institutions Code §15657.3(d)(1)(A) through (C) can commence the lawsuit. If there is a personal representative, but the elder abuse claims are asserted against them, a claim can be brought by an intestate heir, a decedent's successor in interest, or an interested person. (Welf. & Inst. Code, §15657.3(d)(2).) However, it appears that this individual (intestate heir, successor in interest, or interested person) would still be required to comply with C.C.P. §377.32. (Welf. & Inst. Code, §1567.3(d)(1).) Here, Plaintiff alleges that she is an interested person. However, she has not filed a declaration under C.C.P. §377.32. As such, absent the procedural issues, the court would have sustained the demurrer to these causes of action with leave to amend for plaintiff to file the declaration.

5.

CASE #	CASE NAME	HEARING NAME
CVME2507338	CARMAN V. WESTERN STATES	CMC AND OSC

Tentative Ruling: Strike the complaint if Plaintiff fails to appear.

6.

CASE #	CASE NAME	HEARING NAME
CVME2508179	RAMIREZ V. LAZO	TSC

Tentative Ruling: A 7-day court trial is scheduled for June 4, 2027. All parties must strictly comply with Local Rule 3401 and should familiarize themselves with *Reales Investment v. Johnson* (2020) 55 Cal.App.5th 463. Failure to comply with Local Rule 3401 may result in the imposition of evidentiary sanctions. The parties are directed to download, review, and follow the trial binder preparation pamphlet available on the court's website. All experts shall be scheduled to be deposed no later than 20 days prior to the first day of trial. A Zoom MSC will be set by the Court—once set, the Court will provide notice.

7.

CASE #	CASE NAME	HEARING NAME
CVME2508935	VILLA DE AMORE V. NEW AV	CMC

Tentative Ruling: Continue to September 30, 2026 and set an OSC on the same day for failure to request a default if the defendant fails to file a responsive pleading, with sanctions not to exceed \$1,500 and/or striking the pleading.